

IN THE COURT OF THE CIVIL JUDGE (SENIOR DIVISION), GURUGRAM

CIVIL SUIT NO. 612 OF 2025

Karan Vohra

... *PLAINTIFF*

VERSUS

Manpreet Sidhu

... *DEFENDANT*

**SUIT FOR SPECIFIC PERFORMANCE OF AGREEMENT TO SELL AND
PERMANENT INJUNCTION**

A. JURISDICTION

1. This Hon'ble Court has territorial jurisdiction to try this suit as the suit property, being Khasra No. 142/18 admeasuring 1,800 square yards situated at Village Sikanderpur, Tehsil Gurugram and known as Plot No. 27, Sector 56, Gurugram - 122011, Haryana, is wholly situated within its jurisdiction.

B. FACTS OF THE CASE

2. The Defendant is the recorded owner of the suit property, having purchased the same vide registered Sale Deed dated 12.03.2019 (Ex. P-3).
3. The parties executed an Agreement to Sell dated 05.10.2024 (Ex. P-1) for the suit property at a total consideration of Rs. 2,85,00,000, of which earnest money of Rs. 57,00,000 was paid by the Plaintiff (Ex. P-2), the balance being payable on or before 05.04.2025 simultaneously with execution and registration of the sale deed.

Reference note: Agreement-to-sell cross reference ATS-2410-GGN

4. The Plaintiff obtained a bank loan sanction for the balance consideration well before the due date (Ex. P-7) and has at all times been ready and willing to perform his part of the contract.
5. Despite repeated requests, the Defendant failed and neglected to execute the sale deed by the due date, and upon inquiry it transpired that the Defendant intends to sell the suit property to a third party at a higher price.
6. The Plaintiff issued a legal notice dated 20.04.2025 (Ex. P-6) calling upon the Defendant to perform the Agreement, to which the Defendant replied asserting an intention to deal with the property contrary to the Agreement.
7. The Plaintiff has been and continues to be ready and willing to perform his obligations under the Agreement and is entitled to a decree of specific performance under Section 10 of the Specific Relief Act, 1963.
8. Unless restrained, the Defendant is likely to alienate or create third-party rights over the suit property, rendering the relief of specific performance illusory.

C. DETAILED PARTICULARS OF DEALINGS BETWEEN THE PARTIES

9. On 12.03.2019, defendant purchases the suit property vide registered Sale Deed (Ex. P-3), as more fully appears from the Plaintiff's records and the documents filed herewith.
10. On 05.10.2024, agreement to Sell executed for Rs. 2,85,00,000; earnest money of Rs. 57,00,000 paid (Ex. P-1), as more fully appears from the Plaintiff's records and the documents filed herewith.

11. On 08.10.2024, earnest money receipts issued in three instalments (Ex. P-2), as more fully appears from the Plaintiff's records and the documents filed herewith.
12. On 10.02.2025, plaintiff obtains bank loan sanction for the balance consideration (Ex. P-7), as more fully appears from the Plaintiff's records and the documents filed herewith.
13. On 15.03.2025, plaintiff calls upon the Defendant to execute the sale deed; Defendant seeks more time, an accommodation extended by the Plaintiff orally and without any separate contemporaneous writing being drawn up to record the same, as more fully appears from the Plaintiff's records and the documents filed herewith.
14. On 05.04.2025, balance consideration due date passes without execution of the sale deed, as more fully appears from the Plaintiff's records and the documents filed herewith.
15. On 20.04.2025, plaintiff issues legal notice calling for specific performance (Ex. P-6), as more fully appears from the Plaintiff's records and the documents filed herewith.
16. On 10.05.2025, defendant replies asserting an intention to sell to a third party at a higher price, as more fully appears from the Plaintiff's records and the documents filed herewith.

PRAYER

- a. Direct the Defendant to execute and register the sale deed of the suit property in favour of the Plaintiff on receipt of the balance consideration of Rs. 2,28,00,000;
- b. In the alternative, direct refund of the earnest money of Rs. 57,00,000 with interest and damages;
- c. Grant a permanent injunction restraining the Defendant from alienating, encumbering or creating third-party rights over the suit property;
- d. Award costs of the suit.

VERIFICATION

I, the Plaintiff above named, verify that the contents of paragraphs 1 to 16 above are true to my knowledge.

Verified at Gurugram on this the 20th day of May, 2025.

Plaintiff

(Karan Vohra)

Mr. Vikram Ahuja, Advocate for the Plaintiff

Enrolment No. HAR/2214/2010

ANNEXURES TO THE PLAINT

Annexure	Description
Ex. P-1	Agreement to Sell dated 05.10.2024
Ex. P-2	Earnest Money Receipts
Ex. P-3	Prior registered Sale Deed dated 12.03.2019
Ex. P-4	Revenue Records (Jamabandi/Mutation)
Ex. P-5	Chain of Title compilation
Ex. P-6	Legal Notice dated 20.04.2025
Ex. P-7	Bank Loan Sanction Letter
Ex. P-8	Site Plan

(Ex. P-4 and Ex. P-5, being voluminous revenue and title compilations running to several dozen pages, are filed separately as scanned exhibits and are not reproduced in this paper book; they are annexed hereto by reference.)

ANNEXURE EX. P-1 -- AGREEMENT TO SELL

This Agreement to Sell ("Agreement") is made and executed at Gurugram between Manpreet Sidhu, son of Sh. Balraj Sidhu, residing at House No. 88, DLF Phase III, Gurugram - 122002, Haryana (hereinafter referred to as the "Vendor", which expression shall unless repugnant to the context include his legal heirs, successors and assigns), of the ONE PART, and Karan Vohra, residing at House No. 214, Sector 47, Gurugram - 122018, Haryana (hereinafter referred to as the "Vendee", which expression shall unless repugnant to the context include his legal heirs, successors and assigns), of the OTHER PART.

WHEREAS the Vendor is the absolute and lawful owner in possession of the property bearing Khasra No. 142/18, admeasuring 1,800 square yards, situated at Village Sikanderpur, Tehsil Gurugram and known as Plot No. 27, Sector 56, Gurugram - 122011, Haryana ("the said Property"), having purchased the same vide registered Sale Deed dated 12.03.2019 (Ex. P-3), free from all encumbrances, charges or liens of any nature whatsoever;

AND WHEREAS the Vendor has agreed to sell and the Vendee has agreed to purchase the said Property for the total sale consideration and on the terms and conditions recorded below;

NOW THEREFORE THIS AGREEMENT WITNESSETH AS FOLLOWS:

CLAUSE 1 -- AGREEMENT TO SELL

The Vendor hereby agrees to sell, and the Vendee hereby agrees to purchase, the said Property, more particularly described above, free from all encumbrances, together with all rights, easements and appurtenances attached thereto.

CLAUSE 2 -- SALE CONSIDERATION

The total sale consideration for the said Property is agreed at Rs. 2,85,00,000 (Rupees Two Crore Eighty Five Lakh Only).

CLAUSE 3 -- EARNEST MONEY

The Vendee has paid to the Vendor a sum of Rs. 57,00,000 as earnest money on execution of this Agreement, receipt of which the Vendor hereby acknowledges, evidenced by separate receipts issued contemporaneously (Ex. P-2).

CLAUSE 4 -- BALANCE CONSIDERATION AND COMPLETION

The balance sale consideration of Rs. 2,28,00,000 shall be paid by the Vendee to the Vendor on or before 05.04.2025, simultaneously with and against execution and registration of the sale deed in favour of the Vendee or his nominee(s) before the jurisdictional Sub-Registrar.

CLAUSE 5 -- DELIVERY OF POSSESSION

Vacant, physical possession of the said Property shall be delivered by the Vendor to the Vendee simultaneously with execution and registration of the sale deed, the said Property being presently vacant land free from any tenancy or third-party occupation.

CLAUSE 6 -- TITLE AND ENCUMBRANCES

The Vendor represents and warrants that he has clear, marketable and unencumbered title to the said Property, that the same is free from any mortgage, charge, lien, lis pendens, acquisition proceeding or attachment, and undertakes to procure and furnish an encumbrance certificate for the relevant period prior to registration.

CLAUSE 7 -- TAXES AND OUTGOINGS

All property tax, cess and other outgoings in respect of the said Property up to the date of execution of the sale deed shall be borne and discharged by the Vendor, and thereafter by the Vendee.

CLAUSE 8 -- TIMELINE FOR COMPLETION

The parties shall use their best efforts to complete the sale transaction, including execution and registration of the sale deed, on or before the date specified in Clause 4 above; no separate notice making time essential shall be required to be issued for the due date already fixed under this Clause to remain operative.

CLAUSE 9 -- DEFAULT BY THE VENDOR

In the event the Vendor fails or neglects to execute the sale deed by the due date despite the Vendee being ready and willing to pay the balance consideration, the Vendee shall, without prejudice to any other right or remedy, be entitled to seek specific performance of this Agreement, or, in the alternative, refund of the earnest money paid together with damages.

CLAUSE 10 -- DEFAULT BY THE VENDEE

In the event the Vendee fails to tender the balance consideration by the due date without any extension agreed in writing, the earnest money paid shall be liable to forfeiture at the option of the Vendor, without prejudice to the Vendor's other rights.

CLAUSE 11 -- REGISTRATION AND EXPENSES

Stamp duty, registration charges and incidental expenses for execution and registration of the sale deed shall be borne by the Vendee.

CLAUSE 12 -- GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by the laws of India, and the Courts at Gurugram alone shall have jurisdiction over any dispute arising out of or in connection with this Agreement.

CLAUSE 13 -- ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the parties in relation to the said Property and supersedes all prior negotiations, understandings and correspondence on the subject.

IN WITNESS WHEREOF the parties have set their hands on the date first above written, in the presence of the witnesses named below.

Vendor: Manpreet Sidhu

Vendee: Karan Vohra

Witness 1: _____

Witness 2: _____

ANNEXURE EX. P-2 -- EARNEST MONEY RECEIPT 1 OF 3

Receipt No.: EMR/2024/01
Date: 05.10.2024
Amount Received: Rs. 19,00,000 (Rupees Nineteen Lakh Only)
Received From: Karan Vohra, House No. 214, Sector 47, Gurugram - 122018, Haryana
Received By: Manpreet Sidhu (Vendor)
Towards: Part payment of earnest money under Agreement to Sell dated 05.10.2024 for the property at Plot No. 27, Sector 56, Gurugram - 122011, Haryana
Mode of Payment: Cheque -- Cheque No. 004521 drawn on HDFC Bank, Sector 14 Branch, Gurugram
Witnessed By: Aggarwal Estate Consultants, Sector 56, Gurugram (Property Dealer)

Received with thanks the above sum towards part payment of earnest money under the Agreement to Sell referred to above. This receipt forms part of a series of three such receipts issued in respect of the total earnest money of Rs. 57,00,000 paid under the said Agreement.

ANNEXURE EX. P-2 -- EARNEST MONEY RECEIPT 2 OF 3

Receipt No.: EMR/2024/02
Date: 06.10.2024
Amount Received: Rs. 19,00,000 (Rupees Nineteen Lakh Only)
Received From: Karan Vohra, House No. 214, Sector 47, Gurugram - 122018, Haryana
Received By: Manpreet Sidhu (Vendor)
Towards: Part payment of earnest money under Agreement to Sell dated 05.10.2024 for the property at Plot No. 27, Sector 56, Gurugram - 122011, Haryana
Mode of Payment: RTGS -- UTR No. HDFC0N24102600981
Witnessed By: Aggarwal Estate Consultants, Sector 56, Gurugram (Property Dealer)

Received with thanks the above sum towards part payment of earnest money under the Agreement to Sell referred to above. This receipt forms part of a series of three such receipts issued in respect of the total earnest money of Rs. 57,00,000 paid under the said Agreement.

ANNEXURE EX. P-2 -- EARNEST MONEY RECEIPT 3 OF 3

Receipt No.: EMR/2024/03
Date: 08.10.2024
Amount Received: Rs. 19,00,000 (Rupees Nineteen Lakh Only)
Received From: Karan Vohra, House No. 214, Sector 47, Gurugram - 122018, Haryana
Received By: Manpreet Sidhu (Vendor)
Towards: Part payment of earnest money under Agreement to Sell dated 05.10.2024 for the property at Plot No. 27, Sector 56, Gurugram - 122011, Haryana
Mode of Payment: Cheque -- Cheque No. 004522 drawn on HDFC Bank, Sector 14 Branch, Gurugram
Witnessed By: Aggarwal Estate Consultants, Sector 56, Gurugram (Property Dealer)

Received with thanks the above sum towards part payment of earnest money under the Agreement to Sell referred to above. This receipt forms part of a series of three such receipts issued in respect of the total earnest money of Rs. 57,00,000 paid under the said Agreement.

ANNEXURE EX. P-3 -- PRIOR REGISTERED SALE DEED (2019)

THIS DEED OF SALE is made and executed at Gurugram on 12.03.2019 between Sh. Balraj Sidhu, son of Late Sh. Gurbachan Sidhu, residing at House No. 88, DLF Phase III, Gurugram - 122002, Haryana (hereinafter the "Vendor") and Manpreet Sidhu, son of Sh. Balraj Sidhu, residing at House No. 88, DLF Phase III, Gurugram - 122002, Haryana (hereinafter the "Vendee").

WHEREAS the Vendor is the absolute owner in possession of the property described in the Schedule below, and has agreed to sell the same to the Vendee, his son, for the consideration stated below.

NOW THIS DEED WITNESSETH as follows:

1. CONSIDERATION AND RECEIPT

In consideration of the sum of Rs. 2,10,00,000 (Rupees Two Crore Ten Lakh Only) paid by the Vendee to the Vendor before the Sub-Registrar at the time of registration, receipt of which the Vendor hereby admits and acknowledges, the Vendor doth hereby sell, convey, transfer and assure unto the Vendee the property described in the Schedule below, together with all rights, easements and appurtenances thereto belonging.

2. SCHEDULE OF PROPERTY

Khasra No.:	Khasra No. 142/18
Area:	1,800 square yards
Village:	Village Sikanderpur, Tehsil Gurugram
Known As:	Plot No. 27, Sector 56, Gurugram - 122011, Haryana
Bounded North By:	Plot No. 26, Sector 56, Gurugram
Bounded South By:	Plot No. 28, Sector 56, Gurugram
Bounded East By:	40-feet wide internal road, Sector 56, Gurugram
Bounded West By:	Plot No. 14, Sector 56, Gurugram and adjoining vacant land

3. DELIVERY OF POSSESSION

Vacant physical possession of the said property has been delivered by the Vendor to the Vendee simultaneously with execution of this deed.

4. COVENANTS OF TITLE

The Vendor covenants that he has good right, full power and absolute authority to sell the said property, that the same is free from all encumbrances, mortgages, charges, attachments or acquisition proceedings, and that the Vendee shall hold and enjoy the said property without any interruption or disturbance from the Vendor or any person claiming through him.

5. INDEMNITY

The Vendor shall indemnify and keep indemnified the Vendee against any loss or claim arising from any defect in title existing prior to the date of this deed.

REGISTRATION PARTICULARS

Registration No.:	GGN/2019/04471
Book No.:	1
Volume No.:	4471
Pages:	112 to 119
Sub-Registrar Office:	Sub-Registrar, Gurugram (Sadar)

Vendor: Balraj Sidhu

Vendee: Manpreet Sidhu

Registered before the Sub-Registrar, Gurugram (Sadar) on 12.03.2019.

ANNEXURE EX. P-6 -- LEGAL NOTICE AND POSTAL TRACKING REPORT

Ref. No.: KV/SP-NOTICE/2025/04
Date: 20.04.2025

To,
Manpreet Sidhu
House No. 88, DLF Phase III, Gurugram - 122002, Haryana

Subject: Notice calling for Specific Performance of Agreement to Sell dated 05.10.2024

Dear Sir/Madam,

Under instructions from my client, Karan Vohra, I state that despite the balance consideration having fallen due on 05.04.2025 and my client being ready and willing to pay the same, you have failed to execute the sale deed for the suit property.

You are hereby called upon to execute and register the sale deed within 15 days of receipt of this notice, failing which my client shall be constrained to institute appropriate civil proceedings for specific performance, entirely at your risk as to costs and consequences.

Yours faithfully,
(Mr. Vikram Ahuja, Advocate)
Advocate for Karan Vohra

POSTAL TRACKING REPORT

Consignment No.: RL774521125IN
Booked At: Gurugram Sector 44 Post Office
Addressed To: Manpreet Sidhu, House No. 88, DLF Phase III, Gurugram - 122002,
Haryana

Date	Status
20.04.2025	Booked at Gurugram Sector 44 Post Office
21.04.2025	Dispatched from origin office
22.04.2025	Arrived at destination sorting hub
24.04.2025	Delivered -- signed for by addressee

ANNEXURE EX. P-7 -- BANK LOAN SANCTION LETTER

Applicant:	Karan Vohra
Loan Account No.:	HL/GGN/2025/331207
Sanctioned Amount:	Rs. 2,28,00,000
Sanction Date:	10.02.2025
Purpose:	Purchase of property at Plot No. 27, Sector 56, Gurugram - 122011, Haryana
Tenure:	180 months (15 years)
Rate of Interest:	9.15% p.a., floating, linked to the Bank's external benchmark lending rate
Indicative EMI:	Approximately Rs. 2,32,400 per month (subject to reset on change in benchmark rate)
Processing Fee:	0.5% of the sanctioned amount plus applicable taxes
Sanction Validity:	6 months from the date of sanction

TERMS AND CONDITIONS

1. Disbursement of the sanctioned amount shall be made directly to the Vendor's account simultaneously with execution and registration of the sale deed in favour of the Applicant.
2. The Applicant shall create an equitable mortgage of the title deeds of the property in favour of the Bank as continuing security for the loan.
3. The property shall be comprehensively insured, with the Bank's interest noted on the policy, for the duration of the loan.
4. The Applicant shall be entitled to prepay the loan, in full or in part, subject to the Bank's prevailing prepayment guidelines.
5. This sanction is subject to the Bank's standard terms and conditions of lending and to satisfactory legal and technical verification of the property and title documents.

For HDFC Bank Limited
(Authorised Signatory, Home Loans Division, Gurugram Branch)

ANNEXURE EX. P-8 -- SITE PLAN

Property: Khasra No. 142/18
Area: 1,800 square yards
Known As: Plot No. 27, Sector 56, Gurugram - 122011, Haryana
Prepared By: Licensed Surveyor, Gurugram
Date: 05.11.2025

BOUNDARIES AND DIMENSIONS

Frontage (East): 60 feet, facing the 40-feet wide internal road, Sector 56
Depth: 270 feet
Bounded North By: Plot No. 26, Sector 56, Gurugram
Bounded South By: Plot No. 28, Sector 56, Gurugram
Bounded West By: Plot No. 14, Sector 56, Gurugram and adjoining vacant land

Site plan depicting the boundaries, access road and existing structures on the suit property, prepared for the purposes of this suit. The property is vacant land with no permanent construction, save a boundary wall along the northern and western edges. Access is available directly from the internal Sector 56 road abutting the eastern boundary.

Certified as a true depiction of the site as surveyed on the date noted above.